

# HOUSE . . . . . No. 5584

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## The Commonwealth of Massachusetts

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PRESENTED BY:

*Manny Cruz and Joan B. Lovely*

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing ranked choice voting for local elections in the city of Salem.

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PETITION OF:

| NAME:             | DISTRICT/ADDRESS: | DATE ADDED:      |
|-------------------|-------------------|------------------|
| <i>Manny Cruz</i> | <i>7th Essex</i>  | <i>6/29/2026</i> |

# HOUSE . . . . . No. 5584

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By Representative Cruz of Salem and Senator Lovely, a joint petition (accompanied by bill, House, No. 5584) of Manny Cruz (with the approval of the mayor and city council) that the city of Salem be authorized to use ranked choice voting for local elections in said city. Election Laws. [Local Approval Received.]

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act authorizing ranked choice voting for local elections in the city of Salem.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 445 of the Acts of 1960, establishing preliminary elections in  
2 Salem, is hereby repealed.

3           SECTION 2. Notwithstanding the provisions of chapters 50 through 54 of the general  
4 laws, or of any other general or special law to the contrary, election of candidates at municipal  
5 elections in the City of Salem shall be conducted using ranked choice voting when there are  
6 more than 2 candidates for a single seat office or more candidates than the number of seats for a  
7 multiple seat office.

8           SECTION 3. For purposes of this act, the following definitions shall apply.

9           a. “Board”, the board of registrars of the city of Salem or other body serving in a similar  
10 capacity by whatever name.

b. “Concluded ballot”, a ballot that does not rank any continuing candidate or contains an overvote at the highest-ranked continuing candidate.

c. “Continuing candidate”, a candidate who has not been defeated or elected.

d. “Highest-ranked continuing candidate”, the continuing candidate with the highest ranking on a voter’s ballot; provided that if a ranking is skipped, the next highest ranking shall be used.

e. “Overvote”, a voter ranks more than 1 candidate at the same ranking.

f. “Ranked Choice Voting” or “RCV”, shall mean an election system in which voters rank the candidates for an office in order of preference. The calculation of election results occurs in rounds in which votes are distributed to candidates according to the preferences marked on each ballot.

g. “Ranking”, the number assigned by a voter to express preference for a candidate, with ranking number 1 as the highest preference;

h. “Repeat candidate ranking,” shall mean when a voter ranks the same candidate at multiple rankings for the contest being counted

i. “Round,” shall mean the sequence of ranked choice voting steps established by sections 4 and 5 of this act.

j. “Skipped ranking,” shall mean when a voter leaves a ranking blank and ranks a candidate at a subsequent ranking;

#### SECTION 4. Single-Seat Elections.

31 a. Each ballot shall count as 1 vote for its highest-ranked continuing candidate for that  
32 office. Concluded ballots shall not be counted for that office.

33 b. If there are 2 or fewer continuing candidates, the candidate with the most votes shall be  
34 elected.

35 c. If there are more than 2 continuing candidates, the candidate with the fewest votes  
36 shall be defeated.

37 d. The vote tabulation process shall then be repeated, eliminating the candidate with the  
38 fewest votes in each round until there are only 2 or fewer continuing candidates, at which time  
39 the candidate with the most votes shall be elected.

40 e. When a ballot has a skipped ranking or repeat candidate ranking for that office, that  
41 ballot shall count for its highest-ranked continuing candidate.

42 f. In the case of an overvote involving two or more continuing candidates, the overvote  
43 candidates and all subsequently ranked candidates shall not be counted.

44 SECTION 5. Multi-Seat Elections. Each round shall begin by counting each ballot, in  
45 whole or in part, for its highest-ranked continuing candidate. Concluded ballots shall not be  
46 counted for any continuing candidate. In the first round, each ballot shall count as 1 vote for its  
47 highest-ranked continuing candidate, and the election threshold shall be determined by dividing  
48 the total number of votes in this round by the number of seats to be elected, rounding down to the  
49 nearest whole number, and adding one. Each round shall proceed sequentially as follows:

50 a. If the number of continuing candidates is equal to the remaining number of seats to be  
51 elected, all continuing candidates shall be elected, and tabulation shall be complete.

b. If any continuing candidate has a number of votes that equals or exceeds the election threshold, the continuing candidate with the most votes shall be elected. If the elected

candidate exceeds the threshold, the excess part of each vote received by that candidate shall be counted in the next round for the ballot's next-ranked continuing candidate.

c. If no continuing candidate equals or exceeds the election threshold, the candidate with the fewest votes shall be defeated and a new round shall begin.

d. When a ballot has a skipped ranking or a repeat candidate ranking for that office, that ballot shall count for its highest-ranked continuing candidate.

e. In the case of an overvote involving 2 or more continuing candidates, the overvote candidates and all subsequently ranked candidates shall not be counted.

SECTION 6. Tie Votes. If 2 or more candidates are tied for the fewest votes, the continuing candidate with the fewest votes in the immediately prior round, or, if also tied in that round, in the round before that, shall be eliminated. Notwithstanding the preceding sentence, if a tie occurs in the first round, or a tie remains in a later round that cannot be resolved with reference to earlier rounds, the tie shall be broken in the manner set forth in the rules promulgated pursuant to section 7 of this act.

SECTION 7. Rules. The City Clerk, with the approval of the board, shall promulgate rules necessary to implement this act and ensure the integrity of the RCV process, including but not limited to the following:

a. The form of the RCV ballot, including the opportunity to rank at least 1 write-in vote;

b. The order in which names of candidates appear on the ballot, provided that any incumbent seeking reelection to the same office shall have the words “candidate for reelection” printed next to their name; and

c. A process to resolve tie votes in the first round and ties that cannot otherwise be resolved in the manner set forth in section 6.

#### SECTION 8. Acceptance of Act

a. This act shall be submitted to the voters for acceptance at a regular biennial city election occurring on or after November 2, 2027 and at least 6 months after the passage of this act, in the following form, “Shall an act passed by the General Court entitled ‘An Act Authorizing Ranked Choice Voting for Local Elections in the City of Salem’ be accepted?” Below the question shall appear a summary of how RCV will work in the city of Salem, and 1-sentence statements explaining the meaning of a “yes” and “no” vote on the question, prepared by the City Solicitor.

b. Sections 1 through 7 of this act shall take effect in the City of Salem only upon acceptance of this act by the voters of the City in the manner provided in section 8.a., and not otherwise.

SECTION 9. This act shall take effect upon its passage.